

**Performance Based Statement of Work
Raman Repair and Upgrade
Mechanical and Aerospace Engineering Department
Naval Postgraduate School**

1.0 Background/Introduction: This request is for the repair, relocation, and upgrade of an existing Renishaw Raman spectrometer/microscope system. Raman spectroscopy characterizes the structural state of materials through inelastic light scattering that probes vibrational modes (phonons), enabling analysis of phase, crystallinity, chemical bonding, and stress/strain. This instrument is not operational due to a power supply failure. We would like to restore the system to full functionality, upgrade legacy components to a modern configuration (including polarization-resolved Raman capability), and relocate the instrument to Watkins Hall. Once restored and upgraded, the Raman system will complement instruments at Naval Postgraduate School (NPS), significantly expanding the spectroscopy capabilities available to students and researchers in various departments including Mechanical and Aerospace Engineering (MAE), Physics, and Systems Engineering (SE). The system will be available for use by all qualified students and faculty.

2.0 Scope: The Renishaw inVia Raman system shall be restored to full operational functionality. During a prior technician visit, a power supply issue was identified as the cause of the system's inoperability; this issue will be corrected by replacing the necessary components. The system will also be disassembled and reassembled to support relocation from its current location to a new space in another building. A new control computer with the latest software will be installed, and polarization capability will be added for the 514 nm and 633 nm laser lines.

3.0 Tasks: The contractor shall perform the following task(s) as follows:

- 3.1 Restore the Renishaw inVia Raman system, which is currently experiencing power issues, to full operational condition.
- 3.2 Install a new computer to control and operate the Raman system.
- 3.3 Upgrade the Raman system to the latest software.
- 3.4 Add polarization capability for 514 and 633 nm laser lines.
- 3.5 Assist with relocating the Renishaw inVia Raman system and, after relocation, ensure the Raman system is properly aligned, calibrated, and fully functional.

4.0 Deliverables:

The contractor shall be responsible for providing the following deliverables:

- 4.1 Repair and restore the Renishaw inVia Raman system to full operational condition.
- 4.2 Provide and install a new control computer and integrate it with the Raman instrument.
- 4.3 Upgrade the Raman system to the latest approved software version.
- 4.4 Install and configure polarization capability for the 514 nm and 633 nm laser lines.
- 4.5 Assist with relocation of the Raman system and perform reinstallation, alignment, and recommissioning.
- 4.6 Conduct calibration and functional testing of the Raman System to verify proper operation.
- 4.7 Provide documentation summarizing the work performed and final system status.

Performance Measurement - Quality Assurance Plan

Task	Deliverable that will be inspected	Acceptable Quality Level (AQL)	Method	Frequency
3.1	Repair and restore the Renishaw inVia Raman system to full operational condition	inVia Raman system should be in full operational status	Personal verification at NPS	During the technician's visit
3.2	Install a new PC to control and operate the system	New PC will be installed	Personal verification at NPS	During the technician's visit

3.3	Upgrade the system to the latest software	Latest software will be installed	Personal verification at NPS	During the technician's visit
3.4	Add polarization capability for 514 and 633 nm laser lines	Polarization capability will be added for 514 and 633 nm laser lines	Personal verification at NPS	During the technician's visit
3.5	Assist with relocating the Renishaw inVia Raman system and, after relocation, ensure the system is properly aligned, calibrated, and fully functional	Once relocated, the inVia Raman system needs to be verified for full functionality	Personal verification at NPS	During the technician's visit

If performance falls below the AQL defined above, the Contracting Officer's Representative (COR) shall document the instance(s), coordinate with the Contracting Officer and advise the Contractor. The Contractor will be requested to review the documentation and provide a written response on how performance will be corrected in the future. Re-performance of any work for failure to perform in accordance with the specified AQL or task requirement shall be completed at the Contractor's own expense and at no additional cost to the Government.

5.0 Minimum Technical Requirements:

5.1 A minimum of 5 years of Experience in Renishaw Raman system within the past 7 years.

5.2 Certified by Renishaw manufacturer for working on Renishaw inVia Raman system.

6.0 Period of Performance: Required completion date: June 30, 2026

7.0 Place of Performance: NPS. The technician must be on site to perform required part replacements, disassembly, reassembly, and upgrade services.

8.0 Government Furnished Property: Not applicable

9.0 Work Week and Hours of Operation:

The Contractor shall provide services during normal working hours excluding federal holidays. Normal working hours are 0730-1630, Monday through Friday, unless requirements dictate otherwise. Exceptions can be permitted by the COR upon request and at the COR's discretion.

Following is a list of holidays observed by the Government.

<u>Name of Holiday</u>	<u>Time of Observance</u>
New Year's Day	1 January
Martin Luther King Jr. Day	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	19 June
Independence Day	4 July
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veteran's Day	11 November
Thanksgiving Day	Fourth Thursday in November
Christmas Day	25 December

If any of the above holidays occur on a Saturday or a Sunday, then such holiday shall be observed by the Contractor in accordance with the practice as observed by the assigned Government employees at the using activity.

10.0 Travel: Not applicable

11.0 Transition Activities: Not applicable

It is essential to the Government that services required under this PWS are performed without interruption. At the conclusion of any performance period, including option periods or extensions, the services provided under this PWS may be awarded to another contractor. The contractor in place shall be required to assist in the transition activities.

12.0 Security Requirements: Work is unclassified.

Contractor personnel performing work under this contract must have a *(no security level required)* at time of the proposal submission and must maintain the level of security required for the life of the contract. The security requirements are in accordance with the attached DD254. Contractor Key Personnel must be U.S. Citizens.

Contractors performing on this contract are required to familiarize themselves with, and participate in, the Naval Postgraduate School's OPSEC program. Must be familiar with and comply with NPSINST 3432.1B, the NPS Critical Information List, DOD Directive 5205.02E and their applicable references. The contractor will be required to complete OPSEC and counter-intelligence training within 30 days of beginning the work or provide proof of OPSEC and counterintelligence training completed within the previous 12 months. The contractor may not publicly release any information about developmental work or curriculum at NPS without prior written approval from the Principal Investigator (PI).

Full-time contractor personnel working at NPS shall complete Intelligence Oversight training (TWMS-663371 or equivalent) within 30 days of beginning the work and yearly thereafter. Contact your Contracting Officer Representative or Technical Point of Contact listed below for training slides and self-certification. In addition, the contractor shall immediately report any Questionable Intelligence Activity (QIA) or a Significant or Highly Sensitive Matter (S/HSM), as defined by SECNAVINST 3820.3F, to the COR and Technical Point of Contact (TPOC).

13.0 Human Subject Research: Not applicable

Contractor personnel performing work under this contract may not support, advise, or conduct research involving human subjects. If at any time during the period of performance of this contract the tasks involve human subject research, the Contractor shall immediately notify the Contracting Officer. The contract must be amended in accordance with DoDD 3216.02 and DFAR 252.235-7004 in the event human subject research is proposed.

14.0 Privacy Act Statement:

"Pursuant to Title 5 United States Code 552a(m)(1), the contractor and all employees of the contractor working under this contract are required to comply with the requirements of 5 U.S.C. 552a ("The Privacy Act of 1974")."

15.0 Identification of Contractor Employees:

In accordance with DFAR 211.106, there shall be a clear distinction between Government employees and service contractor employees. Service contractor employees shall identify themselves as contractor personnel by introducing themselves or being introduced as contractor personnel. Contractor personnel will be required to obtain and wear badges or other visible identification for meetings with Government personnel to provide a clear distinction between service contractor employees and Government personnel. In addition, contractor personnel shall appropriately identify themselves as contractor employees in telephone conversations and in formal and informal written correspondence. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

16.0 Non-Personal Services Statement:

Contractor employees performing services under this order will be controlled, directed, and always supervised by management personnel of the contractor. Contractor management will ensure that employees properly comply with the performance work standards outlined in the SOW. Contractor employees will perform their duties independent of, and without the supervision of, any Government official or other Defense Contractor. The tasks, duties, and responsibilities set forth in the task order may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal policy,

obligating the appropriated funds of the United States Government, overseeing the work of Federal employees, or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR). The Government will control access to the facility and will perform the inspection and acceptance of the completed work.

17.0 SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY SYSTEMS OR PROTECTED HEALTH INFORMATION

The following shall be inserted in full text in all solicitations and contracts (including commercial acquisitions) which require contractor unclassified access to federally controlled facilities, sensitive information, Information Technology (IT) systems or protected health information. For commercial acquisitions, this text shall be incorporated into either the SOW or PWS.

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short-term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This clause local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. The clause local text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival at the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. Visit Authorization Request (VAR)
- b. Contractor Information Sheet (CIS)
- c. FD-258 Fingerprint Card
- d. Completed Electronic Investigation (EQIP)
- e. All contractor resource(s) must have an active Joint Personnel Adjudication System (JPAS) profile
- f. Common Access Card (CAC)

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In Accordance With (IAW) Secretary of the Navy (SECNAV) M-5510.30, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as IT-I, IT-II, or IT-III. The IT-II level, defined in detail in SECNAV M-5510.30, includes positions which require access to sensitive information. Sensitive information includes information protected under the Privacy Act, to include PHI. All contractor employees under this contract who require access to Privacy Act protected information are therefore categorized no lower than IT-II. IT Levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged, or IT-I level access, (when specified by the terms of the contract) require a Single Scope Background Investigation (SSBI) or T5 or T5R equivalent investigation, which is a higher-level investigation than the National Agency Check (NAC) with Law and Credit (NACLC)/T3/T3R described below. Due to the privileged system access, an investigation suitable for High-Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g., system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1 and must be trained and certified on the Operating System (OS) or Computing Environment (CE) they are required to maintain.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM at least thirty (30) days prior to the individual's start date. Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all employees requiring access complete annual Cyber Awareness training and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieve the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally controlled information system/network and/or to government information, meaning information not authorized for public release.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) workdays after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. Contractor employees under this contract are recognized as Non-Critical Sensitive [ADP/IT-II] positions when the contract scope of work require physical access to a federally controlled base, facility, or activity and/or requiring access to a DoD computer/network, to perform unclassified sensitive duties. This designation is also applied to contractor employees who access Privacy Act and PHI, provide support associated with fiduciary duties, or perform duties that have been identified as National Security Positions. At a minimum, each contractor employee must be a US citizen and have a favorably completed NACLC or T3 or T3R equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or IT-II position. The investigation consists of a standard NAC and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or IT-II position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards (or an electronic fingerprint submission)
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements, ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy command's ISSM/IAM. Completion and approval of a SAAR-N form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the

Navy CSM at least thirty (30) days prior to the individual's start date. Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM; Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

If the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a VAR via the JPAS or a hard copy VAR directly from the contractor's security representative. Although the contractor will take JPAS owning role over the contractor employee, the Navy command will take JPAS "Servicing" role over the contractor employee during the hiring process and for the duration of assignment under that contract. The contractor shall include the IT position category per SECNAV M-5510.30 for each employee designated on a VAR. The VAR requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
- Must have a favorably completed NACI or T1 investigation equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or an electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

* Consult with your CSM and ISSM/IAM for local policy when IT-III (non-sensitive) access is required for non-U.S. citizens outside the U.S.. *

**Alternative language which may be included as appropriate:

Contractor and all Contractor personnel with access to or responsibility for XXXXXX of this contract shall comply with DoD Directive 8500.1E IA, DoDI 8510.01 Risk Management Framework (RMF) for DoD IT, DoD Directive 5400.11 DoD Privacy Program, DoD 5200.2-R Personnel Security Program and HSPD 12.

X.1 Be CAC ready at the IT Level II prior to reporting for work.

X.2 At minimum, all contractor personnel must possess/maintain a favorable Tier 3 investigation: formerly a NAC with Local Agency Check and Credit Check (NACLC). This requirement is critical in order to access the database systems within

NAVSUP. It is Contracting Companies; responsibility to ensure that 100% of the contractors have Tier 3 investigation/IT Level II. In addition, interim approval of clearances is not authorized.

X.3 Be citizens of the U.S.

X.4 If at any time, any contractor person requiring a CAC is unable to possess/maintain an adjudicated Tier 3 investigation, the contractor shall immediately notify the NAVSUP COR to coordinate removal of such a person from work under this contract.

X.5 Contractor personnel with access to or responsibility for nonpublic government data under this contract must comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements, known as the CAC for NAVSUP.

* Consult with your Command Security Manager and Information Assurance Manager for local policy when IT-III (non-sensitive) access is required for non-US citizens outside the United States.